

Master Service Agreement Template

This Master Service Agreement, hereafter the Agreement, is entered into between the Client and the Contractor identified on the signature page. It sets out the general terms under which the Contractor provides services described in one or more attached Statements of Work.

Definitions

Services means the work described in a Statement of Work. Deliverables means the work products to be provided to the Client. Confidential Information means any non-public information disclosed by either party in connection with this Agreement, whether marked confidential or not.

Scope of Services

The Contractor shall perform the Services described in each Statement of Work with reasonable skill and care. Changes to scope must be agreed in writing through a change order signed by both parties. The Contractor may not subcontract the Services without prior written consent of the Client.

Payment Terms

The Client shall pay each undisputed invoice within 30 days of receipt, known as net 30 payment terms. Late payments accrue a late fee of 1.5 percent per month on the outstanding balance. The Contractor may suspend the Services if an undisputed invoice remains unpaid for more than 60 days.

Confidentiality

Each party shall protect the other party's Confidential Information with the same care it uses for its own, and no less than reasonable care. Confidential Information may be used only to perform this Agreement and may not be disclosed to third parties for a period of 3 years after termination.

Termination

Either party may terminate this Agreement for convenience with 30 days written notice to the other party. Either party may terminate immediately if the other party materially breaches the Agreement and fails to cure the breach within 15 days of written notice. Upon termination the Client pays for all Services performed to date.

Limitation of Liability

Neither party is liable for indirect, incidental or consequential damages. The total liability of either party under this Agreement is capped at the fees paid by the Client in the 12 months preceding the claim. Nothing in this clause limits liability for gross negligence or willful misconduct.

Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict of law rules. Any dispute arising from this Agreement shall be resolved in the state or federal courts located in Delaware, and both parties consent to that jurisdiction.